IN THE DISTRICT COURT OF _____ COUNTY, KANSAS

In the Matter of the Marriage of

_____ _____ _____ _____
(First Name) (Middle Name) (Last Name) (Jr./Sr./III)
(Write your full legal name above)

and **Case Number** _____
(Will be assigned when case is filed)

_____ _____ _____ _____
(First Name) (Middle Name) (Last Name) (Jr./Sr./III)
(Write your spouse's full legal name above)

PETITION FOR DIVORCE (without children)

1. What is your name? *(Write your full legal name on the lines below)*

_____
(First Name) (Middle Name) (Last Name) (Jr./Sr./III)

2. Are you a resident of Kansas?

> "Residence" means the place which is adopted by a person as the person's place of habitation and to which, whenever the person is absent, the person has the intention of returning. When a person eats at one place and sleeps at another, the place where the person sleeps shall be considered the person's residence. K.S.A. 77-201(23).
>
> Some ways you may show you are a resident of Kansas may include the following: if you have a Kansas driver's license, you have filed a Kansas tax return, you own or rent a residence in Kansas, or you stay in Kansas with the intent to remain.

☐ Yes.
☐ No.

3. *(Check one of these two boxes and fill out the blanks.)*

☐ I have been a resident of Kansas for at least the 60 days before the day I filed this petition.

☐ I am not a resident of Kansas. I have been a resident in _____, since _____.
(State) *(Month and Year)*

4. Are you an active-duty service member with the United States military?
(Check one of the two boxes and fill out the blanks.)

☐ Yes. My duty station is _____. ☐ Confidential – write state only

☐ No.

5. What is your spouse's mailing address?

The court will use this address to send information about this case to your spouse.

_____
(Street)

_____ _____ _____
(City) *(State)* *(Zip Code)*

_____ _____
(Telephone Number with Area Code) *(Email Address)*

6. Is your spouse a resident of Kansas?

"Residence" means the place which is adopted by a person as the person's place of habitation and to which, whenever the person is absent, the person has the intention of returning. When a person eats at one place and sleeps at another, the place where the person sleeps shall be considered the person's residence. K.S.A. 77-201(23).

Some ways you may show you are a resident of Kansas may include the following: if you have a Kansas driver's license, you have filed a Kansas tax return, you own or rent a residence in Kansas, or you stay in Kansas with the intent to remain.

☐ Yes.
☐ No.

7. *(Check one of these two boxes and fill out the blanks.)*

☐ My spouse has been a resident of Kansas for at least the 60 days before the day I filed this petition.

☐ My spouse is not a resident of Kansas. My spouse has been a resident in

_____, since _____.
(State) *(Month and Year)*

8. Is your spouse on active duty with the United States military?
(Check one of the three boxes.)

If your spouse is on active duty in the armed forces of the United States, the Servicemembers Civil Relief Act (SCRA) may prevent you from getting a divorce without your spouse's consent. You should contact a lawyer about this situation before filing this petition.

☐ Yes.
☐ No.
☐ I do not know.

9. In what year were you and your spouse married? *(Fill in the blank.)*

We were married in _____.
(Year)

10. Do you want spousal support (also known as alimony or maintenance)?
(Check one of the two boxes.)

The court may call spousal support "maintenance." The court can decide whether to order your spouse to pay you spousal support for up to 121 months.

☐ Yes.
☐ No.

11. Do you want to change your name? *(Check one of the two boxes and fill in the blanks, if any.)*

☐ Yes. I want my name to be changed to

_____	_____	_____	_____
(First Name)	*(Middle Name)*	*(Last Name)*	*(Jr./Sr./III)*

☐ No.

12. Do you have any children from your relationship under the age of 19?
(Check one of the two boxes.)

If you do have children from your relationship who are under the age of 19, use the Petition for Divorce (with children) form.

☐ Yes.
☐ No.

13. Are you pregnant? *(Check one of the four boxes.)*

☐ I am pregnant.
☐ I do not know if I am pregnant.
☐ I am not pregnant.
☐ I do not wish to answer this question.

14. Is your spouse pregnant? *(Check one of the four boxes.)*

☐ My spouse is pregnant.
☐ I do not know if my spouse is pregnant.
☐ My spouse is not pregnant.
☐ I do not wish to answer this question

15. I want a divorce from my spouse based on incompatibility.

16. The Court should divide our property and debts as my spouse and I agree or as the court may decide.

Sign Below in front of a Notary Public or the Clerk of the District Court

Here are the most common types of businesses where you can find a Notary Public.

Banks, Law Firms or Law Offices, Real Estate Firms or Real Estate Offices, Tax Preparer or Accountant Offices, Photocopy Shops, Parcel Shipping Stores, Colleges and Universities, or Public Libraries.

You may sign below in front of the Clerk of the District Court if you go to the Clerk's office in the courthouse in person.

X_____ _____

(Sign above in front of a Notary Public or the Clerk of the District Court.) *(Print your name above.)*

Your mailing address and information:

This is the address the court will use to send information about your case to you. This address is not necessarily the same as the address at which you live. Even if you do not want to give the address where you live, you must give the court a mailing address. If you want to change your mailing address, you must call the clerk of the district court and tell them your new mailing address.

If you are a protected person under any final or temporary order of protection or a no contact order issued by any court, do NOT fill out your address, phone number or email address below.

☐ *Confidential*

_____

(Street)

_____ _____ _____

(City) *(State)* *(Zip Code)*

_____ _____

(Telephone Number with Area Code) *(Email Address)*

_____

(Fax Number, if any)

VERIFICATION

STATE OF KANSAS

COUNTY OF _____

I swear or affirm that the statements made in this Petition are true and that I am the person filing this petition.

X_____
(Sign above in front of a Notary Public or the Clerk of the District Court.)

Signed and sworn (or attested) before me on _____ by
(Date)
_____.
(Name of person making statement)

_____
Signature of notarial officer

_____
Title of Office

My Commission Expires: _____